

§ 1027-a. Placement of siblings; contact with siblings. (a) When a social services official removes a child pursuant to this part, such official shall place such child with his or her minor siblings or half-siblings who have been or are being remanded to or placed in the care and custody of such official unless, in the judgment of such official, such placement is contrary to the best interests of the children. Placement with siblings or half-siblings shall be presumptively in the child's best interests unless such placement would be contrary to the child's health, safety, or welfare. If such placement is not immediately available at the time of the removal of the child, such official shall provide or arrange for the provision of such placement within thirty days.

(b) If placement of a child removed pursuant to this part together with his or her minor siblings is not in the best interests of the child, the social services official shall arrange appropriate and regular contact by the child with his or her minor siblings and half-siblings unless such contact would not be in the child's and the siblings' best interests.

(c) If a child removed pursuant to this part is not placed together or afforded regular contact with his or her siblings, the child, through his or her attorney or through a parent on his or her behalf, may move for an order regarding placement or contact. The motion shall be served upon: (i) the respondent in the proceeding under this article; (ii) the local social services official having the care of the child; (iii) other persons having care, custody and control of the child, if any; (iv) the parents or other persons having care, custody and control of the siblings to be visited or with whom contact is sought; (v) any non-respondent parent in the proceeding under this article; (vi) such sibling himself or herself if ten years of age or older; and (vii) such sibling's attorney, if any. For purposes of this section, "siblings" shall include half-siblings and those who would be deemed siblings or half-siblings but for the termination of parental rights or death of a parent. The court may order that the child be placed together with or have regular contact with his or her siblings if the court determines it to be in the best interests of the child and his or her siblings.